

TAB 8



Board of Education Report

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File #: Rep-146-22/23, **Version:** 1

March 15 Notices to Administrators
February 7, 2023
Human Resources Division

Action Proposed:

Authorize the Office of the General Counsel and Human Resources Division to send March 15 notices to all certificated contract level management and senior management employees of the classified service with expiring contracts, as provided in Section 35031 of the Education Code. This notice will advise them at least 45 days in advance of their expiring contract or as specified in their contract, that they will be released from their contract positions no later than June 30, 2023.

Authorize Human Resources Division to send, no later than March 15, 2023, notices to all non-permanent and selected permanent certificated administrators, supervisory employees, confidential employees and all non-school based administrators, informing them that they may be released and/or reassigned due to reasons including, but not limited to, funding, restructuring, loss of confidence or for cause, in accordance with Education Code Section 44951.

Authorize Human Resources Division to send subsequent notices of release by June 30, 2023 to employees who were sent March 15 notices and have been identified for actual release. This subsequent notice advises them that they will be released from their current position and reassigned to the position/ classification and salary level indicated in the notice.

Background:

Education Code Section 44951 requires that certificated administrators, confidential employees, and supervisory employees be continued in their positions for the succeeding school year unless notified by March 15 that they may be released and/or reassigned due to reasons including, but not limited to, funding, restructuring, loss of confidence or for cause, in accordance with Education Code Section 44951. Education Code Sections 45100.5 and 35031 require that the District notify certificated contract level management and senior management employees of the classified service with expiring contracts at least 45 days in advance of their expiring contract or as specified in their contract.

Expected Outcomes:

That the Board approve sending March 15 notices to certificated contract management and senior management employees of the classified service with expiring contracts, certificated management and supervisory employees and authorize the Human Resources Division to release/reassign employees in compliance with applicable Education Code provisions and laws to ensure the District meets legal budgetary requirements.

Board Options and Consequences:

Failure to appropriately notify certificated administrators, confidential employees, supervisory employees, certificated management, and certificated and classified contract management employees in accordance with Education Code provisions and laws, may require the District to continue paying these employees' salaries and benefits at their current rate and classifications. Additionally, the District would be limited in its ability to implement layoff proceedings as required due to budgetary uncertainties, if necessary.

Policy Implications:

The Education Code specifies statutory deadlines with which the District must comply in order to implement any release/reassignment of personnel for the next school year. This Board Report would authorize the release/reassignment of employees in compliance with applicable law and implement layoff proceedings as required, if necessary.

Budget Impact:

Failure to appropriately notify certificated administrators, confidential employees, supervisory employees, certificated and classified contract management employees in accordance with Education Code provisions and laws, may require the District to continue paying these employees' salaries and benefits at their current rate and classifications. Additionally, the District would be limited in its ability to implement layoff proceedings as required due to budgetary uncertainties, if necessary.

Student Impact:

If authorized, this action will provide the District maximum flexibility to implement best staffing practices for student success.

Equity Impact:

Not applicable

Issues and Analysis:

Not applicable

Attachments:

Not applicable

Informatives:

Not applicable

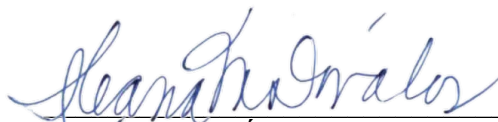
Submitted:

01/10/23

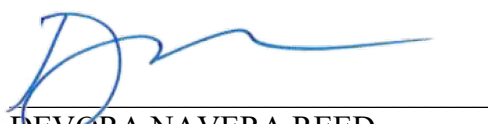
RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent

APPROVED & PRESENTED BY:


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Chief Human Resources Officer
Human Resources Division

REVIEWED BY:


DEVORA NAVERA REED
General Counsel

APPROVED BY:


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Deputy Superintendent,
Business Services & Operations

✓ Approved as to form.

REVIEWED BY:


TONY ATIENZA
Director, Budget Services and Financial Planning

✓ Approved as to budget impact statement.